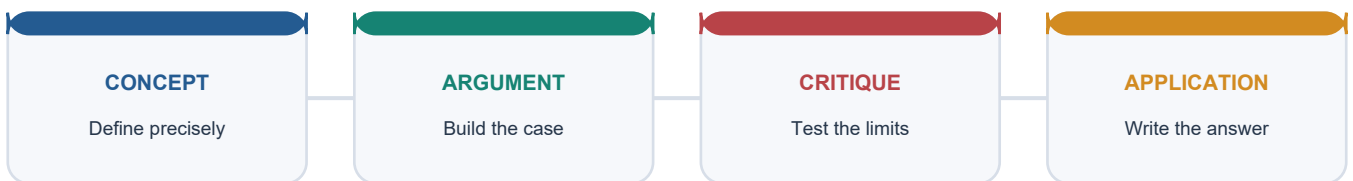


COMPLETE LEARNING SESSION

Polity 28 - UPSC and SPSC - Complete Learning Session

Complete Learning Session

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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POLITY 28 - UPSC AND SPSC

SOURCE CONTROL AND LIMITS

- **Control date:** 8 September 2026, Asia/Kolkata.
- **Source order used:** canonical basic/UPSC-and-SPSC.md; canonical advanced/28_UPSC-and-SPSC.md; related canonical public-services owners only for institutional boundaries; OCR-searchable local *Indian Polity* by M. Laxmikanth, chapters on UPSC and SPSC; official Constitution text; official UPSC/DoPT/SSC/India Code material; official Supreme Court judgments; Qdrant not required.
- **Constitutional correction:** official Article 316(2) fixes age 65 only for the Union Commission and age 62 for both a State Commission and a Joint Commission. Any source grouping Joint PSC with UPSC at 65 is rejected.
- **Current-office limit:** no chair/member name, roster, vacancy count or examination calendar is frozen because it is volatile and unnecessary for the constitutional answer.
- **State-law limit:** Union consultation regulations and one State's recruitment rules are not universalised across SPSCs.
- **Judgment limit:** *H.S. Bedi* and *Centre for PIL* are omitted because no directly applicable PSC holding was verified for this package.
- **Public-examination limit:** the central 2024 Act/Rules are used only for the UPSC/listed central-exam boundary; they are not presented as automatically governing every SPSC.
- **Evidence method:** every session proceeds from PSC-specific claim -> named evidence -> analysis -> qualification.

ROADMAP

concept and institutions -> Articles 315-316 -> Articles 317-319 and 322
-> Article 320 examinations/consultation -> Articles 321/323 accountability
-> recruitment/vigilance boundaries -> lateral entry -> cases/review
-> integrity/reform -> MCQs/PYQs/Mains -> optional Advanced -> register notes

Core is answer-complete. Optional Advanced depth is separate. Consolidated register notes are the final H2.

BASIC LEARNING SESSION

SESSION 1 - WHY PUBLIC SERVICE COMMISSIONS ARE CONSTITUTIONALISED

POLITICAL EXECUTIVE chooses policy
|
rule-bound recruitment separates public office from patronage
|
PSC tests suitability -> GOVERNMENT appoints -> COURT reviews legality
|
CAPABLE + REPRESENTATIVE + PROCEDURALLY FAIR PUBLIC SERVICE

Definition. A Public Service Commission (PSC) is a constitutional recruitment-and-consultation institution designed to protect equal access, competence and impartial procedure in public employment.

Answer line. The PSC constitutionalises fair entry into public service without transferring the elected government's responsibility to create posts, frame rules and make appointments.

Keywords. Articles 14 and 16; Articles 315-323; merit; representativeness; procedural fairness; executive responsibility.

PSC-specific argument.

- **Claim:** Public recruitment needs an institution outside the vacancy-owning department because patronage can distort both equality and administrative capacity.
- **Named evidence:** Part XIV, Chapter II creates the Union and State PSC architecture, while Articles 14 and 16 supply the equality setting.

- **Analysis:** Independent examination and expert advice improve credibility, but merit must include lawful reservation, accessibility, relevant competence and transparent procedure rather than one score alone.
- **Qualification:** A PSC is not a fourth branch of government and does not own every personnel decision.

Evidence. The official constitutional text and the local OCR polity chapters treat PSC independence as a means of maintaining purity and integrity in public services.

Prelims trap. Merit is not identical to unreserved recruitment or to marks detached from the notified rules.

Mains use. Use this design rationale as the introduction to any answer on independence, recruitment reform or the advisory character of PSCs.

Recap. Constitutional status protects the process; democratic government retains the final lawful decision.

SESSION 2 - INSTITUTIONAL MAP: UPSC, SPSC, JOINT PSC, SSC AND RECRUITMENT BOARDS

Institution	Source	Main field	Essential boundary
UPSC	Article 315(1)	Union services; assigned examinations and consultation	constitutional, not the whole personnel administration
SPSC	Article 315(1)	services of its State	State rules differ; never universalise one State's practice
Joint PSC	Article 315(2) plus parliamentary law	common Commission for consenting States	constitutionally enabled, statutorily created
Staff Selection Commission	Union executive resolution; attached organisation under DoPT	assigned Union recruitment, mainly Group B/C streams	not a constitutional PSC
Statutory recruitment board	its parent Act/rules	sector-specific recruitment	powers extend only as far as the statute/rules

Definition. The recruiting institution must be identified by its legal source, territorial field and assigned posts before any conclusion is drawn about its powers.

Answer line. UPSC, SPSC and Joint PSC belong to the Article 315 scheme; SSC and statutory boards do not acquire PSC status merely because they conduct examinations.

Keywords. constitutional body; statutory body; executive body; assigned jurisdiction; recruitment rules.

PSC-specific argument.

- **Claim:** A correct answer first separates the source of legal authority and then asks which body conducts the examination, advises, recommends or appoints.
- **Named evidence:** Article 315 creates the UPSC/SPSC baseline and enables a Joint PSC; the official SSC history records constitution by executive resolution in 1975 and renaming in 1977.
- **Analysis:** The distinction prevents the common error of treating every competitive examination as an Article 320 examination.
- **Qualification:** A statutory board may have strong powers under its Act, while a constitutional PSC may still tender non-binding advice; rank and operational power are different questions.

Evidence. The Commission label is not decisive. Read the Constitution, parent statute, recruitment rules and notification together.

Prelims trap. SSC is not a statutory commission, and a Joint PSC is not an automatically existing third constitutional tier.

Mains use. Use four columns: source, appointing/controlling authority, recruitment field and accountability route.

Recap. The same activity - recruitment - can rest on different legal foundations.

SESSION 3 - ARTICLE 315: UNION, STATE, JOINT AND UPSC-FOR-A-STATE ARRANGEMENTS

ARTICLE 315

|-- 315(1): UPSC for Union + SPSC for each State
|-- 315(2): State legislative resolutions -> Parliament may create Joint PSC
|-- 315(3): parliamentary law supplies incidental/consequential provisions
|-- 315(4): Governor requests + President approves + UPSC agrees to serve State needs
|-- 315(5): references adapt to the Commission serving the matter

Definition. Article 315 establishes the federal forms through which PSC functions may be organised.

Answer line. The Constitution supplies one Union and State baseline, but also permits consent-based common or assisted arrangements without erasing federal responsibility.

Keywords. Article 315(1)-(5); State resolutions; parliamentary law; Governor request; President approval; UPSC agreement.

PSC-specific argument.

- **Claim:** Article 315 offers three different cooperative devices whose triggers and legal effects must not be merged.
- **Named evidence:** A Joint PSC under clause (2) follows resolutions of the concerned State legislatures and a parliamentary law; clause (4) allows UPSC to agree to serve a State after gubernatorial request and Presidential approval.
- **Analysis:** This flexibility allows smaller or cooperating States to share capacity while keeping consent and legal authority visible.
- **Qualification:** UPSC assistance under Article 315(4) is not the creation of a Joint PSC, and Article 320(2) joint recruitment is another device.

Evidence. The constitutional text distinguishes Commission identity from service of needs and from a joint recruitment scheme.

Prelims trap. Governors do not jointly create a Joint PSC by executive order.

Mains use. Use the three-device distinction to earn precision marks in federal-design questions.

Recap. Common Commission, UPSC service to one State and a joint recruitment scheme have different clauses and actors.

SESSION 4 - ARTICLE 316: APPOINTMENT, COMPOSITION, TERM, RESIGNATION AND ACTING CHAIR

APPOINTMENT / ACTING / RESIGNATION

UPSC or Joint PSC: President -> members | acting chair | resignation received
SPSC: Governor -> members | acting chair | resignation received

COMPOSITION: as nearly as may be, one-half with ≥ 10 years government office

TERM: 6 years OR age ceiling, whichever earlier

UPSC = 65 | SPSC = 62 | JOINT PSC = 62

Definition. Article 316 governs who appoints, the minimum experience mix, tenure, resignation and temporary performance of the Chair's duties.

Answer line. Article 316 combines executive appointment with fixed tenure and an experience floor, but leaves numerical strength and most qualifications to regulation.

Keywords. President; Governor; as nearly as may be one-half; ten years; six years; 65; 62; acting Chair; resignation.

PSC-specific argument.

- **Claim:** The Article differentiates Union/Joint appointment from State appointment while applying the ten-year experience rule to every PSC.
- **Named evidence:** The official text states that the President appoints Union and Joint members, the Governor appoints State members, and qualifying pre-Constitution Crown/Indian State service counts toward ten years.

- **Analysis:** An experienced near-half preserves institutional memory, while the remaining membership permits professional diversity.
- **Qualification:** The Constitution does not fix total strength or require every member to be a serving or retired civil servant.

Evidence. The Fifteenth Amendment Act, 1963 inserted clause (1A) on an acting Chair. The Forty-first Amendment Act, 1976 raised the State/Joint age ceiling from 60 to 62.

Prelims trap. The correct age rule is 65 only for UPSC and 62 for both SPSC and Joint PSC; Presidential appointment does not give Joint members the UPSC ceiling.

Mains use. Separate four actors: appointment, resignation, acting appointment and removal.

Recap. Six years is always subject to the correct age ceiling and begins on entering office.

SESSION 5 - ARTICLE 317: REMOVAL, SUPREME COURT INQUIRY AND INTERIM SUSPENSION

MISBEHAVIOUR, Article 317(1)

President makes reference -> Supreme Court inquiry under Article 145 procedure
-> Court reports whether member ought to be removed -> President passes order

PENDING REFERENCE, Article 317(2)

UPSC/Joint: President may suspend | SPSC: Governor may suspend

DIRECT PRESIDENTIAL GROUNDS, Article 317(3)

insolvency | paid outside employment | infirmity making member unfit

DEEMED MISBEHAVIOUR, Article 317(4)

prohibited interest/benefit in specified government contract

Definition. Article 317 is a differentiated removal code, not a single impeachment-style process.

Answer line. Final removal of every PSC Chair or member belongs to the President; only misbehaviour uses the Supreme Court reference-and-inquiry route.

Keywords. President; Supreme Court inquiry; misbehaviour; suspension; insolvency; paid employment; infirmity; government contract.

PSC-specific argument.

- **Claim:** Centralised final removal protects an SPSC from retaliation by the State executive it may have to advise.
- **Named evidence:** Article 317(1)-(4) and *In re Mehar Singh Saini* (12 November 2010) provide the text and an actual Article 317 inquiry.
- **Analysis:** The Court found specified manipulation and integrity charges proved, held the respondents guilty of misbehaviour and answered that justifiable grounds for removal existed.
- **Qualification:** The Governor's role for an SPSC is only interim suspension after a Presidential reference; the Governor cannot finally remove the member.

Evidence. The official judgment stresses that PSC independence, impartiality and integrity carry correspondingly high standards of probity.

Prelims trap. Do not import the parliamentary address procedure used for judges, and do not require a Supreme Court inquiry for every clause (3) ground.

Mains use. Use *Mehar Singh Saini* to show that removal security protects independence but does not immunise manipulation or abuse of selection power.

Recap. Hard removal prevents retaliation; Article 317 inquiry also enforces constitutional trust.

SESSION 6 - ARTICLES 318, 319 AND 322: CONDITIONS, POST-OFFICE BARS AND FINANCE

Office on ceasing	Permitted PSC progression	Other government employment
UPSC Chair	none	barred
SPSC Chair	UPSC Chair/member; Chair of another SPSC	barred
UPSC member	UPSC Chair; Chair of an SPSC	barred
SPSC member	UPSC Chair/member; Chair of same/another SPSC	barred

Article 318 -> number/conditions of members + staff; no adverse variation for a member

Article 322 -> UPSC expenses charged on CFI; SPSC expenses charged on State CF

Definition. Articles 318, 319 and 322 protect institutional capacity, post-tenure independence and financial continuity.

Answer line. PSC independence rests on a package: regulated conditions, no disadvantageous variation after appointment, narrow post-office routes and charged expenditure.

Keywords. Article 318 regulations; disadvantage bar; Article 319; no same-office reappointment; charged expenditure; Consolidated Fund.

PSC-specific argument.

- **Claim:** Post-office restrictions reduce incentives to please the appointing government in return for ordinary employment.
- **Named evidence:** Article 318 gives the President authority for Union/Joint regulations and the Governor for State regulations; Article 319 creates four office-specific rules; Article 322 charges Union and State PSC expenses on the appropriate Consolidated Fund.
- **Analysis:** These rules secure tenure and resources without granting functional supremacy over the executive.
- **Qualification:** Article 322 expressly names Union and State Commissions; a Joint Commission's financing and incidental arrangements must be read with its parliamentary creating law under Article 315(3), not casually assigned to the Consolidated Fund of India.

Evidence. Article 316(3) separately bars reappointment to the same office after term expiry.

Prelims trap. Do not replace the four Article 319 clauses with a blanket claim that every former member is barred from every public office.

Mains use. Connect entry, tenure, exit and finance, then identify appointment and staff dependence as residual risks.

Recap. Independence is institutional design, not one isolated protection.

SESSION 7 - ARTICLE 320(1)-(2): EXAMINATIONS, CIVIL SERVICES AND ALL-INDIA SERVICES

GOVERNMENT / DoPT / STATE
creates post + frames recruitment/service rules + notifies vacancies

UPSC / SPSC
conducts assigned examination or selection; advises where required

GOVERNMENT
allocates service/cadre and appoints under governing rules

Article 320(2): two or more States request UPSC help for a joint scheme
where specially qualified candidates are required

Definition. Article 320(1) makes examinations for appointments to Union or State services a core PSC duty; clause (2) adds a specialised inter-State assistance function for UPSC.

Answer line. UPSC conducts major civil-services examinations, including the examination interface used for direct recruitment to All-India and Central services, but the services themselves rest on Article 312, statutes and notified

rules.

Keywords. Article 320(1); Civil Services Examination; All-India Services; Article 312; recruitment rules; joint scheme.

PSC-specific argument.

- **Claim:** The examination body and the service-governing authority perform different constitutional and administrative tasks.
- **Named evidence:** Article 320 supplies the examination duty; Article 312 and the All-India Services legal framework govern creation and service architecture; annual examination rules and notices specify the operational route.
- **Analysis:** UPSC tests and recommends while DoPT/cadre-controlling authorities manage allocation, training, service conditions and cadre administration.
- **Qualification:** Not every Union recruitment is conducted by UPSC; valid rules and consultation exemptions allocate work to SSC, departments or other bodies.

Evidence. Article 320(2) is assistance for a joint recruitment scheme, not a Joint PSC under Article 315(2).

Prelims trap. UPSC does not create the IAS/IPS, fix cadre strength or itself appoint every recommended candidate.

Mains use. Use the chain rules -> examination -> recommendation -> appointment -> cadre management.

Recap. UPSC is the constitutional gateway for assigned recruitment, not the owner of the whole career cycle.

SESSION 8 - ARTICLE 320(3): COMPLETE CONSULTATION CATALOGUE

Article 320(3) branch	What consultation covers
(a)	methods of recruitment to civil services and civil posts
(b)	principles for appointments, promotions and transfers; candidate suitability
(c)	disciplinary matters, including memorials or petitions
(d)	claims for legal costs incurred defending acts done in official duty
(e)	claims for injury pension arising from service

Definition. Consultation is the constitutional process by which expert PSC advice enters specified personnel decisions before the executive decides.

Answer line. Article 320(3) reaches beyond examinations: it covers recruitment design, suitability, discipline and two often-forgotten claim categories.

Keywords. methods; principles; suitability; promotion; transfer; discipline; memorial; legal costs; injury pension.

PSC-specific argument.

- **Claim:** The catalogue distinguishes rule design, individual suitability and disciplinary fairness rather than reducing the Commission to an exam agency.
- **Named evidence:** The five branches of Article 320(3) are reproduced in the official constitutional text.
- **Analysis:** Expert consultation can improve consistency and reduce departmental self-interest, especially where a department is both complainant and disciplinary authority.
- **Qualification:** Consultation does not transfer the disciplinary decision to the PSC, and its exact requirement may be shaped by valid exemption regulations and service rules.

Evidence. A legal-cost claim concerns defence of acts purportedly done in execution of official duty; an injury-pension claim concerns injury sustained in service.

Prelims trap. Do not omit clauses (d) and (e), and do not say the PSC conducts vigilance investigation.

Mains use. Group the functions as entry, career movement, discipline and protective claims.

Recap. Article 320 makes the PSC an examination body plus a structured personnel adviser.

SESSION 9 - CONSULTATION EXCLUSIONS, RESERVATION AND REGULATIONS

CONSTITUTIONAL EXCLUSION - Article 320(4)
|-- manner of giving effect to Article 16(4)
`-- claims of Scheduled Castes/Scheduled Tribes under Article 335

REGULATORY EXCLUSION - proviso to Article 320(3)
President/Governor makes regulations -> specifies excluded matters/classes
-> regulations laid before Parliament/State legislature -> legislature may modify

Definition. The consultation duty has constitutional and regulatory boundaries; neither boundary abolishes equality or permits arbitrary recruitment.

Answer line. Reservation policy belongs to the Constitution, legislature and government; a PSC administers the notified roster and eligibility rules in selections assigned to it.

Keywords. Article 16(4); Article 335; Article 320(4); exemption regulations; legislative laying; State variation.

PSC-specific argument.

- **Claim:** Separating policy ownership from exam administration prevents the false claim that PSCs create reservation policy or are excluded from every reserved recruitment.
- **Named evidence:** Article 320(4) excludes required consultation on reservation manner and Article 335 claims; the proviso to Article 320(3) authorises regulations and requires legislative laying.
- **Analysis:** The Commission may still implement reservation in an examination because the recruitment rules and advertisement require it.
- **Qualification:** Union exemption regulations do not automatically govern every SPSC; each State's operative regulations and service rules must be checked.

Evidence. G.S.R. 203(E), 15 March 2024, amended a Union Schedule entry for specified Group A and Group B posts up to pay level 13A filled through named deputation/re-employment, short-term-contract, absorption or composite methods.

Prelims trap. That amendment is not a universal constitutional exemption for all lateral entry or all contract hiring.

Mains use. Write reservation policy -> recruitment rules/roster -> PSC administration; keep consultation exemption separate.

Recap. No consultation on reservation policy does not mean no reservation in PSC recruitment.

SESSION 10 - ARTICLES 321 AND 323: EXTENSION, REPORTING AND THE ADVISORY MODEL

ARTICLE 321
Parliament / State legislature -> may extend PSC functions
-> Union/State services + local authority/body corporate/public institution

ARTICLE 323 ACCOUNTABILITY LOOP
PSC annual report -> President/Governor -> legislature
+ memorandum of cases where advice was rejected
+ reasons for non-acceptance

Definition. Article 321 permits legislative extension of functions, while Article 323 turns non-binding advice into reportable constitutional accountability.

Answer line. A PSC normally persuades rather than commands; its institutional force comes from expertise, reasons, convention and the political cost of explained rejection.

Keywords. additional functions; annual report; memorandum; non-acceptance; reasons; legislative scrutiny.

PSC-specific argument.

- **Claim:** The Constitution balances executive responsibility with visibility: government may depart from advice, but the departure cannot remain entirely private.

- **Named evidence:** Article 323 requires UPSC reporting to the President and Parliament; an SPSC reports to the Governor and State legislature; a Joint Commission reports separately to each served State's Governor for work concerning that State.
- **Analysis:** Reporting lets legislatures see patterns of rejection, delay and non-consultation that a single candidate may not challenge as an individual right.
- **Qualification:** Article 323 does not convert the memorandum into prior legislative approval or make every recommendation binding.

Evidence. Article 321 extension requires an Act; executive convenience alone cannot silently enlarge constitutional functions.

Prelims trap. A Joint Commission does not send one undifferentiated annual report only to the President.

Mains use. Use Article 323 as the bridge between advisory status and democratic accountability.

Recap. The PSC has soft decisional power backed by a hard duty of public explanation.

SESSION 11 - ADVISORY NATURE: MANBODHAN LAL AND JATINDER KUMAR

Case	Precise proposition	What it does not mean
<i>State of U.P. v Manbodhan Lal Srivastava</i> (1957)	Article 320(3)(c) consultation is directory; non-consultation does not by itself create an individual cause of action or invalidate the order	government may ignore rules, equality or mala fides
<i>Jatinder Kumar v State of Punjab</i> (1984)	selection/recommendation is advisory and does not itself compel appointment, especially without an available vacancy	the State may act arbitrarily after announcing recruitment

Definition. PSC advice is constitutionally required within its field but generally does not operate as a binding veto or an appointment order.

Answer line. The legal consequence of consultation must be separated from the continuing duties of fairness, rule compliance and reasoned administration.

Keywords. directory consultation; recommendation; no indefeasible right; vacancy; executive appointment; Article 14 review.

PSC-specific argument.

- **Claim:** The advisory model preserves executive accountability for administration while still injecting independent expertise into the decision chain.
- **Named evidence:** *Manbodhan Lal* controls non-consultation under Article 320(3)(c); *Jatinder Kumar* explains the non-binding character of recommendation and the government's appointment role.
- **Analysis:** These cases prevent candidates from converting consultation or a select list into automatic appointment.
- **Qualification:** Directory does not mean optional in institutional ethics, nor does it protect mala fide, discriminatory or rule-violating action from judicial review.

Evidence. Article 323 adds a systemic reporting consequence when advice is rejected.

Prelims trap. *Manbodhan Lal* did not abolish the constitutional duty to consult.

Mains use. Say non-consultation alone is not fatal, then test rules, prejudice, arbitrariness and the reporting framework.

Recap. Advisory is not meaningless; it identifies who decides and how legality is reviewed.

SESSION 12 - PERSONNEL, VIGILANCE AND RECRUITMENT BOUNDARIES

DEPARTMENT / DoPT / STATE PERSONNEL AUTHORITY

posts | recruitment rules | cadre | reservation roster | appointment | discipline decision

|
PSC: examination / selection / Article 320 advice where applicable

|
CVC / CVO: vigilance scrutiny and advice in covered Union vigilance matters

|
SSC / statutory boards: recruitment assigned by resolution, statute or rules

|
CAT / courts: adjudication and legality review, not recruitment ranking

Definition. Recruitment, vigilance, discipline and adjudication form a chain of distinct institutional functions.

Answer line. A PSC may advise on disciplinary matters, but it neither investigates every vigilance allegation nor replaces the disciplinary authority, CVC, tribunal or court.

Keywords. DoPT; department; disciplinary authority; CVC; CVO; PSC advice; SSC; tribunal; judicial review.

PSC-specific argument.

- **Claim:** Clear allocation prevents forum-shopping and stops constitutional status from being used as a claim of operational monopoly.
- **Named evidence:** Article 320(3)(c), service rules, CVC vigilance guidance and Article 309 personnel rules occupy different stages.
- **Analysis:** CVC/CVO focuses on vigilance examination and advice in its lawful field; the department investigates or conducts proceedings and decides through the competent authority; PSC advice enters where required.
- **Qualification:** The exact sequence and coverage depend on service rules, penalty, post and valid exemptions; one Union procedure cannot be universalised across States.

Evidence. SSC's examination role rests on executive allocation, while statutory boards must stay within their parent legislation.

Prelims trap. Do not say UPSC has an automatic 'edge' that makes CVC advice legally irrelevant; compare source and stage instead.

Mains use. Map allegation -> vigilance/inquiry -> competent authority -> consultation -> final order -> review.

Recap. Constitutional advice, vigilance oversight and final discipline are complementary, not interchangeable.

SESSION 13 - LATERAL ENTRY, CONTRACT HIRING AND CONSULTATION

LATERAL / CONTRACT RECRUITMENT LEGAL TEST

- 1 identify post and employer
- 2 read Article 309 law/rules and notified recruitment method
- 3 identify direct recruitment / deputation / short-term contract / absorption
- 4 check reservation and equality requirements
- 5 check operative UPSC/SPSC consultation regulation
- 6 use transparent notice, conflict control and recorded assessment
- 7 appoint through competent government authority

Definition. Lateral entry is a recruitment method or policy label, not a self-executing constitutional exception to PSCs, equality or reservation law.

Answer line. Whether UPSC participates depends on the post's rules, method, level, consultation regulations and the government's chosen lawful process.

Keywords. lateral entry; contract; deputation; absorption; recruitment rules; consultation exemption; Articles 14 and 16.

PSC-specific argument.

- **Claim:** Specialist recruitment can add scarce expertise, but legitimacy depends on open criteria, comparable evaluation, conflict safeguards and representativeness.
- **Named evidence:** The 15 March 2024 Union amendment names specified methods and pay levels; it does not create a universal category exempting every lateral appointment.
- **Analysis:** A post-specific legal audit prevents both extremes: claiming UPSC must conduct every hire or claiming contract language removes constitutional equality.
- **Qualification:** Short tenure may change the applicable reservation or consultation analysis, but no blanket conclusion should be made without the governing rule and notice.

Evidence. The appointing government remains responsible for legality even when UPSC or another expert body conducts selection.

Prelims trap. Do not infer from one cancelled or completed advertisement a permanent national rule.

Mains use. Critically examine expertise gains against capture risk, transparency, equal opportunity and institutional memory.

Recap. Method can vary; legality, fairness and accountable appointment cannot.

SESSION 14 - JUDICIAL REVIEW OF PSC SELECTIONS

COURT AS LEGALITY REVIEWER

checks -> jurisdiction | notified rules | equality | bias | mala fides
relevant reasons | procedural fairness | rational criteria

COURT NOT A SELECTION BOARD

does not ordinarily -> re-interview | re-rank merit | substitute expert marks
unless illegality requires a tailored remedy

Definition. Judicial review tests the legality of PSC processes without turning judges into a parallel selection panel.

Answer line. Courts protect the rules of the game, impartial decision-making and constitutional equality while respecting expert assessment within lawful bounds.

Keywords. bias; recusal; natural justice; stable criteria; mala fides; expert body; tailored remedy.

PSC-specific argument.

- **Claim:** Selection legitimacy depends both on correct results and on a process that reasonably appears impartial.
- **Named evidence:** *Ashok Kumar Yadav v State of Haryana* (1985) applied the reasonable-likelihood-of-bias rule and required a related Commission member not to participate in the concerned candidate's interview; it also scrutinised excessive viva-voce weight.
- **Analysis:** *K. Manjusree* (2008) rejected an undisclosed criterion introduced after selection began, and *Tej Prakash Pathak* (2024) restated rule stability subject to governing rules and non-arbitrariness.
- **Qualification:** Relief must fit the defect; a proven conflict affecting one candidate does not mechanically require destruction of an entire process if lawful severance is possible.

Evidence. *Mehar Singh Saini* concerns Article 317 misbehaviour and institutional probity, not routine appellate re-marking.

Prelims trap. Courts do review illegality, but no case creates one universal interview percentage for all services.

Mains use. Use rule announced -> process followed -> defect -> prejudice/systemic impact -> proportionate remedy.

Recap. Courts keep the selector within law; they do not normally become the selector.

SESSION 15 - EXAM INTEGRITY, TECHNOLOGY AND PAPER-LEAK BOUNDARIES

INTEGRITY CHAIN

question creation -> encrypted custody -> centre/vendor controls -> identity checks
-> audit logs -> incident reporting -> investigation -> reasoned candidate remedy

LEGAL LAYERS

UPSC-listed central exam -> Public Examinations Act/Rules 2024 may apply
SPSC exam -> check State law + notification + general criminal/IT law
selection validity -> recruitment rules + equality + natural justice + court remedy

Definition. Exam integrity combines prevention, detection, investigation and candidate-facing correction across the law governing that examination.

Answer line. Technology can strengthen traceability, but it cannot cure opaque outsourcing, poor conflict controls or delayed remedies.

Keywords. Public Examinations Act 2024; UPSC; SSC; SPSC boundary; CBT; audit log; paper leak; proportional remedy.

PSC-specific argument.

- **Claim:** Institution-specific legal mapping prevents the national anti-unfair-means framework from being incorrectly extended to every State examination.
- **Named evidence:** The central Act's Schedule expressly includes examinations conducted by UPSC and other listed central authorities; the 2024 Rules address computer-based-test standards, reporting and monitoring.
- **Analysis:** Strong governance joins technical controls with chain-of-custody accountability and transparent decisions on cancellation, re-examination or result correction.
- **Qualification:** SPSC coverage must be checked against the central Act's notified scope and applicable State legislation; a State paper leak is not automatically an Article 320 issue or automatically covered by the central Act.

Evidence. Criminal prosecution addresses wrongdoing; selection-law review separately addresses candidate fairness and validity of the process.

Prelims trap. Biometric or AI tools are administrative controls, not constitutional safeguards, and one leak does not automatically require cancellation of every stage.

Mains use. Recommend risk-based security, independent audits, vendor liability, whistle-blower channels, fast evidence preservation and reasoned proportionate remedies.

Recap. Secure systems need both hard technology and lawful, reviewable human decisions.

SESSION 16 - INDEPENDENCE, SPSC RISKS AND THE FINAL ANSWER FRAME

INDEPENDENCE SCORECARD

ENTRY	transparent criteria? broad talent pool? recorded reasons?
TENURE	Article 317 security? vacancies filled? acting arrangements lawful?
FUNCTION	adequate staff/data? conflict and recusal rules? timely exams?
FINANCE	charged expenditure where Article 322 applies? operational autonomy?
OUTPUT	reasoned advice/results? grievance route? Article 323 reporting?
REVIEW	legislative scrutiny + court legality review + public audit trail

Definition. PSC independence is the capacity to make lawful, impartial and competent recommendations without political, personal or vendor capture.

Answer line. The Constitution secures tenure, conditions, post-office restrictions and finance, but appointment opacity, vacancies, staff dependence, delay and weak reporting can still erode operational independence.

Keywords. constitutional safeguards; politicisation; vacancies; transparency; recusal; SPSC variation; accountability; reform.

PSC-specific argument.

- **Claim:** A credible reform agenda evaluates the whole institution rather than demanding either executive control or unaccountable autonomy.
- **Named evidence:** Articles 317-319, 322-323 and the official *Mehar Singh Saini* judgment provide the constitutional and probity anchors.
- **Analysis:** Recruitment merit, social representativeness and procedural fairness are distinct but complementary tests of legitimacy.
- **Qualification:** For SPSCs, State-specific evidence is essential because appointment conventions, regulations, staffing, calendars and integrity challenges vary across States.

Evidence. National coordination may support security and learning, but cannot erase State constitutional responsibility or impose one unverified model universally.

Prelims trap. Undated chair/member names, vacancy numbers and scandal headlines are not constitutional rules.

Mains use. Conclude with transparent selection criteria, timely appointments, professional staff, recusal, audit trails, reasoned results, grievance timelines and stronger Article 323 scrutiny.

Recap. Independent advice becomes legitimate when it is competent, representative, transparent and correctable.

ASCII MASTER FLOW DIAGRAM - 12 SYNCHRONISED PANELS

ASCII MASTER FLOW - PANEL 1/12: CONCEPT, HISTORY AND INSTITUTIONAL FIREWALL

=====

CENTRAL QUESTION: How can recruitment resist patronage yet remain representative and accountable?

1853 competitive turn -> 1919 statutory provision -> first PSC, 1 October 1926

-> Government of India Act 1935 federal/provincial/joint design -> Constitution, 26 January 1950.

PSC = constitutional exam/advice institution; government = posts/rules/appointment;
court = legality review. UPSC/SPSC/Joint PSC != SSC != statutory recruitment board.

ANSWER LINE: constitutional status protects process, not a monopoly over personnel administration.

ASCII MASTER FLOW - PANEL 2/12: ARTICLE 315 FEDERAL FORMS

=====

315(1): Union Commission + Commission for each State, subject to Article 315.

315(2): State legislative resolutions -> Parliament may create Joint PSC by law.

315(3): law supplies appointment/incidental/consequential provisions.

315(4): Governor request + President approval + UPSC agreement -> serves State needs.

315(5): references adapt to the Commission serving the matter.

TRAP: Joint PSC, UPSC-for-one-State and joint recruitment are three different devices.

ASCII MASTER FLOW - PANEL 3/12: ARTICLE 316 COMPOSITION AND TENURE

=====

Appointment: President -> UPSC/Joint; Governor -> SPSC.

As nearly as may be one-half: >=10 years government office; qualifying old service counts.

Strength not constitutionally fixed; no universal degree/civil-service qualification.

Term: six years OR age ceiling, earlier event: UPSC 65; SPSC 62; Joint PSC 62.

Resignation: President for UPSC/Joint; Governor for SPSC.

316(1A), Fifteenth Amendment 1963: competent authority appoints acting Chair.

316(3): no reappointment to same office after term expiry.

ASCII MASTER FLOW - PANEL 4/12: ARTICLE 317 REMOVAL AND SUSPENSION

=====

Misbehaviour: President reference -> Supreme Court inquiry -> report -> President order.

Direct President grounds: insolvency | paid outside employment | qualifying infirmity.

Deemed misbehaviour: prohibited interest/participation in government contract or benefit.

After reference: President suspends UPSC/Joint; Governor suspends SPSC.

Mehar Singh Saini (2010): proved manipulation/integrity failures justified removal finding.

TRAP: Governor appoints SPSC but never finally removes its member.

ASCII MASTER FLOW - PANEL 5/12: ARTICLES 318, 319 AND 322 SAFEGUARDS

=====

318: President regulates Union/Joint members/staff; Governor regulates SPSC.

Member conditions cannot be varied to disadvantage after appointment.

319: UPSC Chair none; SPSC Chair -> UPSC Chair/member or other SPSC Chair;

UPSC member -> UPSC Chair/SPSC Chair; SPSC member -> UPSC Chair/member or SPSC Chair.

322: UPSC expenses charged on CFI; SPSC expenses charged on State Consolidated Fund.

Joint finance: check parliamentary creating law under 315(3); do not assume CFI.

ASCII MASTER FLOW - PANEL 6/12: ARTICLE 320 EXAMINATIONS AND AIS INTERFACE

=====

320(1): examinations for appointments to respective Union/State services.

Civil Services Examination = UPSC interface; Article 312/AIS law governs services.

Government/DoPT: posts, rules, cadre, allocation, training and appointment.

320(2): UPSC helps 2+ requesting States with joint scheme for specially qualified services.

SSC/boards conduct recruitment assigned by resolution/statute/rules.

TRAP: recommendation/examination is not the final appointment act.

ASCII MASTER FLOW - PANEL 7/12: ARTICLE 320(3) CONSULTATION CATALOGUE

=====

(a) methods of recruitment.

(b) appointment/promotion/transfer principles + candidate suitability.

(c) disciplinary matters, memorials and petitions.

(d) qualifying legal-cost claims for official-duty defence.

(e) injury-pension claims arising from service.

CVC/CVO handles covered vigilance; department decides; PSC consults where required.

ASCII MASTER FLOW - PANEL 8/12: EXCLUSIONS, RESERVATION AND LATERAL ENTRY

=====

320(4): no required consultation on Article 16(4) manner or Article 335 claims.
PSC still administers reservation roster/rules in assigned selection.
Proviso 320(3): President/Governor exemption regulations -> legislative laying/modification.
15 March 2024 Union amendment: specified posts/methods up to level 13A;
not a universal lateral-entry exemption.
Lateral/contract: post -> rules -> method -> equality/reservation -> consultation -> appointment.
State regulations vary; never export one State or Union rule nationally.

ASCII MASTER FLOW - PANEL 9/12: ARTICLES 321 AND 323

=====

321: Act of Parliament/State legislature may extend functions to services/public bodies.
323 UPSC: report -> President -> Parliament + rejected-advice memorandum/reasons.
323 SPSC: report -> Governor -> State legislature + memorandum/reasons.
323 Joint: State-specific report to each served State's Governor -> legislature.
Manbodhan Lal (1957): consultation directory; non-consultation alone not invalidating.
Jatinder Kumar (1984): recommendation advisory; government retains appointment role.

ASCII MASTER FLOW - PANEL 10/12: CASE LAW AND JUDICIAL REVIEW

=====

Ashok Kumar Yadav (1985): recusal for bias risk; interview weight reviewable.
Shankarsan Dash (1991): select-list inclusion ordinarily creates no appointment right.
K. Manjusree (2008): no undisclosed criterion introduced after process begins.
Mehar Singh Saini (2010): Article 317 inquiry enforces constitutional integrity.
Tej Prakash Pathak (2024): rule stability and non-arbitrariness.
Court reviews jurisdiction/rules/equality/bias; does not ordinarily re-interview or re-rank.

ASCII MASTER FLOW - PANEL 11/12: INTEGRITY AND INDEPENDENCE LIMITS

=====

Safeguards: removal security + no adverse conditions + post-office bars + finance + reports.
Limits: executive appointment + vacancies + staff dependence + delay + opaque vendors/interviews.
Integrity: creation -> custody -> centre/CBT -> identity -> logs -> report -> remedy.
Public Examinations Act/Rules 2024 expressly cover UPSC-listed central exams.
SPSC coverage requires applicable law/notification; avoid universal claim.
Technology supports evidence; it cannot replace reasoned, proportionate remedies.

ASCII MASTER FLOW - PANEL 12/12: TRAPS, REFORMS AND ANSWER SPINE

=====

TRAPS: Governor appoints SPSC/President removes | Union 65 vs State+Joint 62
| advice != appointment | reservation policy != PSC ownership.
REFORMS: member criteria | timely vacancies | professional staff | recusal | secure vendors
-> reasoned results/grievances -> consultation matrix -> stronger Article 323 scrutiny.
ANSWER: define -> exact Article/actor -> claim -> named evidence -> analysis -> qualification
-> precise reform -> verdict: merit + representativeness + procedural fairness.
CONCLUSION: independent, capable, transparent and correctable recruitment earns trust.

Use. Follow the panels alone to reconstruct a 10-, 15- or 20-mark answer without relying on the graphical poster.

BASIC MCQS / REMEDIATION

32 ORIGINAL MCQS - STRICT KEY SEQUENCE ABCD x 8

MCQ 1

Article 315(1) establishes which baseline?

A. A Union Commission and a Public Service Commission for each State, subject to Article 315 B. One national Commission for all Union and State services C. A Joint Commission for every pair of neighbouring States D. Only a Union Commission, with State bodies left to ordinary law

Answer: A.

Option-by-option explanation

- **A:** This states the constitutional Union-State baseline while preserving Article 315's cooperative alternatives.
- **B:** This erases the distinct State Commission required by the constitutional design.
- **C:** This converts an optional consent-based arrangement into an automatic rule.
- **D:** This ignores the express constitutional establishment of State Commissions.

Examiner trap 1: Article 315 creates more than one institutional form; do not collapse the federal map into UPSC.

MCQ 2

A Joint State Public Service Commission can be brought into existence through:

A. a common executive order signed by participating Governors B. resolutions of the concerned State legislatures followed by a law of Parliament C. an agreement between the UPSC and the Chief Ministers D. a recommendation of the Inter-State Council accepted by the President

Answer: B.

Option-by-option explanation

- **A:** This lacks both the legislative resolutions and parliamentary law required by Article 315(2).
- **B:** This reproduces the consent trigger and creating instrument specified in Article 315(2).
- **C:** This confuses a Joint Commission with UPSC assistance under Article 315(4).
- **D:** This assigns a constitutional role to the Inter-State Council that Article 315 does not provide.

Examiner trap 2: State consent initiates the route, but Parliament supplies the creating law.

MCQ 3

Under Article 315(4), UPSC may agree to serve the needs of a State when there is:

A. a request by the Chief Minister and approval of Parliament B. a request by the State legislature and consent of UPSC alone C. a request by the Governor and approval of the President D. a direction by the President without UPSC agreement

Answer: C.

Option-by-option explanation

- **A:** This substitutes political and legislative actors not named in clause (4).
- **B:** This omits Presidential approval and uses the wrong requesting institution.
- **C:** This correctly combines gubernatorial request, Presidential approval and UPSC agreement.
- **D:** This overlooks that the Commission agrees to serve; the arrangement is not a unilateral direction.

Examiner trap 3: UPSC serving one State is not the same device as creating a Joint PSC.

MCQ 4

Article 320(2) is best distinguished from Article 315(2) because it concerns:

A. permanent merger of two SPSCs B. appointment of Joint PSC members C. UPSC taking over all functions of a State Commission D. UPSC assistance to requesting States in a joint recruitment scheme for specially qualified services

Answer: D.

Option-by-option explanation

- **A:** This invents a merger not contemplated by clause (2).
- **B:** This belongs to the Joint Commission architecture under Articles 315-316.
- **C:** This overstates a specialised assistance function into total institutional substitution.
- **D:** This accurately identifies the joint-scheme duty and its special-qualification condition.

Examiner trap 4: Common recruitment and a common Commission are constitutionally different.

MCQ 5

Who appoints the Chair and members of the UPSC and a Joint PSC?

A. The President B. The Prime Minister C. Parliament D. The Chief Justice of India

Answer: A.

Option-by-option explanation

- **A:** Article 316(1) assigns both Union and Joint Commission appointments to the President.
- **B:** Political advice does not replace the formal constitutional appointing authority.
- **C:** Parliament may enact a Joint Commission law but does not make individual appointments.
- **D:** The Chief Justice has no appointing role under Article 316.

Examiner trap 5: Creating law and appointing authority must be answered separately.

MCQ 6

The Article 316 experience rule requires that:

A. every member must have ten years in an All-India Service B. as nearly as may be one-half of the members must have held government office for at least ten years C. the Chair alone must have ten years of judicial office D. exactly half the members must be retired civil servants

Answer: B.

Option-by-option explanation

- **A:** This narrows qualifying service beyond the constitutional text.
- **B:** This correctly states both the approximate fraction and the minimum period.
- **C:** This invents a Chair-specific judicial qualification.
- **D:** This changes 'as nearly as may be' and 'held office' into a rigid retired-civil-servant quota.

Examiner trap 6: The Constitution fixes an experience mix, not a complete professional profile.

MCQ 7

Which Article 316 age pairing is correct?

A. UPSC 62; SPSC 65; Joint PSC 65 B. UPSC 65; SPSC 62; Joint PSC 65 C. UPSC 65; SPSC 62; Joint PSC 62 D. UPSC 62; SPSC 62; Joint PSC 65

Answer: C.

Option-by-option explanation

- **A:** This reverses the Union and State ceilings and also misstates the Joint ceiling.

- **B:** This is the tempting error that groups the President-appointed Joint Commission with UPSC.
- **C:** This follows the exact text: 65 only for Union, 62 for State and Joint.
- **D:** This incorrectly lowers the Union ceiling and raises the Joint ceiling.

Examiner trap 7: Appointment by the President does not give Joint PSC members the UPSC age ceiling.

MCQ 8

An SPSC member resigns by writing addressed to the:

A. President B. Chief Minister C. State legislature D. Governor

Answer: D.

Option-by-option explanation

- **A:** The President is the final removal authority, not the SPSC resignation addressee.
- **B:** The Chief Minister is not named by Article 316(2)(a).
- **C:** The State legislature has no role in receiving an individual resignation.
- **D:** The Governor is the correct addressee for a State Commission member.

Examiner trap 8: For an SPSC, resignation goes to the Governor but removal remains with the President.

MCQ 9

If the UPSC Chair is unable to perform duties, the acting arrangement is made by:

A. the President appointing another member to perform the duties B. automatic succession by the senior-most member C. the Cabinet Secretary nominating a retired member D. a resolution of both Houses

Answer: A.

Option-by-option explanation

- **A:** This reflects Article 316(1A)'s Presidential acting appointment.
- **B:** Seniority may influence practice but is not the constitutional rule.
- **C:** A civil servant has no Article 316 appointment power.
- **D:** Parliament has no acting-Chair role under this clause.

Examiner trap 9: Never convert a possible seniority practice into constitutional text.

MCQ 10

After expiry of a PSC member's term, Article 316(3) makes the person:

A. ineligible for every constitutional office B. ineligible for reappointment to that same office C. eligible for one automatic extension D. eligible only if the legislature approves

Answer: B.

Option-by-option explanation

- **A:** This is wider than the clause and ignores Article 319's permitted progressions.
- **B:** This states the exact same-office reappointment bar.
- **C:** This contradicts the express ineligibility after term expiry.
- **D:** This invents a legislative waiver absent from Article 316.

Examiner trap 10: Read the same-office bar with, not instead of, Article 319.

MCQ 11

Which statement correctly distinguishes Article 317 removal routes?

A. Every ground requires a Supreme Court inquiry. B. The Governor may finally remove an SPSC member for incapacity. C. Misbehaviour requires Supreme Court inquiry, while clause (3) contains direct Presidential grounds. D. Parliament removes a Joint PSC member by special majority.

Answer: C.

Option-by-option explanation

- **A:** This overlooks the insolvency, outside-employment and infirmity route in clause (3).
- **B:** This confuses the Governor's limited suspension power with final removal.
- **C:** This correctly separates the inquiry route from the direct Presidential grounds.
- **D:** This imports a legislative removal mechanism not found in Article 317.

Examiner trap 11: Do not apply the Supreme Court inquiry to every ground or omit it for misbehaviour.

MCQ 12

Pending an Article 317(1) reference concerning an SPSC member, who may suspend the member?

A. The President alone B. The Supreme Court C. The State legislature D. The Governor

Answer: D.

Option-by-option explanation

- **A:** This is correct for Union/Joint suspension but not for the State Commission clause.
- **B:** The Court conducts the inquiry; it does not issue the constitutional suspension order.
- **C:** The legislature has no suspension power under Article 317(2).
- **D:** The Governor is the express interim authority for an SPSC after reference.

Examiner trap 12: Governor suspension is temporary; Presidential removal remains final.

MCQ 13

Which is a direct ground under Article 317(3)?

A. Adjudged insolvency B. An adverse annual report C. Failure to accept government advice D. A legislative no-confidence motion

Answer: A.

Option-by-option explanation

- **A:** Adjudged insolvency is one of the three objective grounds named in clause (3).
- **B:** An adverse report may trigger scrutiny but is not a constitutional ground by itself.
- **C:** A Commission may disagree with government without attracting this removal clause.
- **D:** No-confidence has no place in PSC tenure.

Examiner trap 13: Clause (3) grounds are insolvency, paid outside employment and qualifying infirmity.

MCQ 14

Article 317(4) treats a PSC member as guilty of misbehaviour when the member:

A. criticises a recruitment rule B. has the prohibited interest or participation in specified government contracts or benefits C. recommends fewer candidates than vacancies D. submits an annual report late

Answer: B.

Option-by-option explanation

- **A:** Legitimate institutional criticism is not a deemed ground.
- **B:** This captures the conflict-of-interest deeming rule, subject to the incorporated-company qualification.

- **C:** Recommendation numbers may need reasons but are not automatically deemed misbehaviour.
- **D:** Delay is not the contractual conflict identified in clause (4).

Examiner trap 14: The contract-interest clause is a constitutional conflict rule, not a general performance code.

MCQ 15

Article 318 permits the competent executive authority to regulate:

A. only the Chair's salary B. only the Commission's examination syllabus C. member number/conditions and staff number/conditions D. judicial review of selections

Answer: C.

Option-by-option explanation

- **A:** The Article covers wider member and staff architecture.
- **B:** Syllabi may arise elsewhere; Article 318 concerns institutional conditions and staffing.
- **C:** This accurately states both branches of the regulation power.
- **D:** Judicial review belongs to constitutional courts, not Article 318 regulations.

Examiner trap 15: The disadvantage proviso protects member conditions after appointment, not every staff condition forever.

MCQ 16

Which statement about a former UPSC Chair is correct under Article 319?

A. The person may chair an SPSC. B. The person may become a Union Secretary. C. The person may accept State government employment. D. The person is ineligible for further employment under the Union or a State government.

Answer: D.

Option-by-option explanation

- **A:** An SPSC chairmanship is not a permitted route for the former Union Chair.
- **B:** A Union Secretaryship is ordinary government employment and is barred.
- **C:** State government employment is equally barred.
- **D:** This states Article 319(a)'s strict post-office rule.

Examiner trap 16: The strongest Article 319 bar applies to the UPSC Chair, not identically to all members.

MCQ 17

A former SPSC Chair may constitutionally be appointed as:

A. UPSC Chair/member or Chair of another SPSC B. a member of the same SPSC C. any State Chief Secretary D. any public-sector enterprise head

Answer: A.

Option-by-option explanation

- **A:** These are the permitted PSC progressions under Article 319(b).
- **B:** Same-SPSC membership is not listed and conflicts with the same-office concern.
- **C:** Chief Secretary is ordinary government employment outside the permitted route.
- **D:** A public-sector post cannot be assumed outside the government-employment bar.

Examiner trap 17: An SPSC Chair may move upward or across only through the offices exactly named.

MCQ 18

A former UPSC member other than the Chair may become:

A. an ordinary SPSC member B. UPSC Chair or Chair of an SPSC C. a Union Minister by virtue of Article 319 D. a departmental consultant automatically

Answer: B.

Option-by-option explanation

- **A:** Article 319(c) permits an SPSC chairmanship, not ordinary membership.
- **B:** This is the complete permitted PSC route for a former UPSC member.
- **C:** Political office is not created by Article 319 and needs separate analysis.
- **D:** No automatic consultancy exception exists.

Examiner trap 18: UPSC member -> SPSC Chair is allowed; UPSC member -> SPSC member is not listed.

MCQ 19

A former SPSC member other than the Chair is eligible for:

A. only Chair of the same SPSC B. only an ordinary UPSC membership C. UPSC Chair/member or Chair of the same/another SPSC D. any government employment after a cooling-off period

Answer: C.

Option-by-option explanation

- **A:** This omits Union Commission and another-State chairmanship routes.
- **B:** This excludes chair positions expressly permitted by Article 319(d).
- **C:** This accurately reproduces the broadest PSC progression clause.
- **D:** The Constitution contains no cooling-off exception to the bar.

Examiner trap 19: Article 319(d) is broader than the route for a former UPSC member.

MCQ 20

Article 322 directly provides that:

A. all recruitment expenditure is voted annually B. Joint PSC expenses are always charged on the Consolidated Fund of India C. only member pensions are charged D. UPSC expenses are charged on the Consolidated Fund of India and SPSC expenses on the State Consolidated Fund

Answer: D.

Option-by-option explanation

- **A:** This contradicts the charged-expenditure protection.
- **B:** This overstates the text; Joint Commission finance also requires its creating-law analysis.
- **C:** Salaries, allowances, pensions and staff/Commission expenses are not reduced to pensions alone.
- **D:** This correctly states the express Union-State charging rule.

Examiner trap 20: Do not assign Joint PSC finance to the Union fund without checking Article 315(3) law.

MCQ 21

The core duty stated in Article 320(1) is to:

A. conduct examinations for appointments to the respective Union or State services B. make final appointments to every civil post C. frame all service conditions under Article 309 D. decide service disputes

Answer: A.

Option-by-option explanation

- **A:** This reproduces the examination duty in clause (1).

- **B:** Final appointment belongs to the competent government under governing rules.
- **C:** Rule-making rests with the legislature/executive framework, not this examination duty.
- **D:** Service disputes belong to tribunals and courts.

Examiner trap 21: Examination is a duty; appointment remains a separate legal act.

MCQ 22

Article 320(3)(b) includes consultation on:

A. criminal investigation methods B. principles for appointments, promotions and transfers and candidate suitability C. reservation policy formulation under Article 16(4) D. election of service associations

Answer: B.

Option-by-option explanation

- **A:** Criminal-investigation design falls outside the consultation catalogue.
- **B:** This states the career-movement and suitability branch accurately.
- **C:** Reservation manner is excluded from required consultation by Article 320(4).
- **D:** Service-association elections are not a constitutional consultation subject.

Examiner trap 22: Recruitment methods under clause (a) and appointment principles under clause (b) are separate.

MCQ 23

Which often-overlooked matter is expressly included in Article 320(3)?

A. allocation of tax revenue B. recognition of political parties C. a qualifying official-duty legal-cost claim D. delimitation of constituencies

Answer: C.

Option-by-option explanation

- **A:** Tax distribution belongs to fiscal federalism, not PSC consultation.
- **B:** Party recognition belongs to election law and the ECI field.
- **C:** This is expressly included, along with specified injury-pension claims.
- **D:** Delimitation uses a separate statutory-constitutional framework.

Examiner trap 23: Legal-cost and injury-pension claims are high-value close-option facts.

MCQ 24

Article 320(4) means PSC consultation is not required on:

A. every reserved vacancy selection B. all appointments involving an SC/ST candidate C. all equality questions under Article 14 D. the manner of giving effect to Article 16(4) and Article 335 claims

Answer: D.

Option-by-option explanation

- **A:** This wrongly converts policy non-consultation into non-administration of reservation.
- **B:** This would exclude individuals rather than the specified policy matters.
- **C:** This is far broader than the constitutional text.
- **D:** This states the two express exclusions.

Examiner trap 24: A PSC can administer reservation rules although reservation policy is outside mandatory consultation.

MCQ 25

Regulations excluding matters from Article 320(3) consultation must be:

A. laid before the appropriate legislature, which may modify them under the constitutional procedure B. approved by the Supreme Court before notification C. identical for the Union and every State D. treated as constitutional amendments

Answer: A.

Option-by-option explanation

- **A:** This reflects the proviso's legislative-laying accountability.
- **B:** The Constitution does not require prior judicial approval.
- **C:** This ignores separate Union and State regulation-making and legal variation.
- **D:** Delegated constitutional regulation is not an Article 368 amendment.

Examiner trap 25: Never universalise Union exemption schedules across SPSCs.

MCQ 26

Article 321 allows additional PSC functions to be conferred by:

A. executive circular alone B. an Act of Parliament or the State legislature, as applicable C. a judgment selecting new recruitment fields D. an annual report under Article 323

Answer: B.

Option-by-option explanation

- **A:** An executive circular lacks the legislative instrument expressly required.
- **B:** This is the competent route and can extend functions to specified public bodies.
- **C:** Courts review legality but do not ordinarily legislate new Commission functions.
- **D:** A report records work; it does not enlarge jurisdiction.

Examiner trap 26: Article 321 extension is legislative, not an implication from administrative practice.

MCQ 27

Article 323 requires the annual report and non-acceptance memorandum to be placed before:

A. the Supreme Court B. the Commission's own secretariat C. the appropriate legislature D. the Inter-State Council

Answer: C.

Option-by-option explanation

- **A:** Courts may review disputes but do not receive the constitutional report package.
- **B:** Secretariat custody is not the final accountability destination.
- **C:** Parliament receives the UPSC package and the relevant State legislature receives State/Joint reporting.
- **D:** The Inter-State Council has no Article 323 role.

Examiner trap 27: A Joint Commission reports State-wise through each served State's Governor.

MCQ 28

The rule in *State of U.P. v Manbodhan Lal Srivastava* (1957) is that:

A. PSC advice binds the disciplinary authority B. every non-consultation voids the final order C. consultation creates a fundamental right to appointment D. Article 320(3)(c) consultation is directory and non-consultation alone does not create an individual right or invalidate action

Answer: D.

Option-by-option explanation

- **A:** This contradicts the decision's advisory understanding.

- **B:** This automatic-invalidity rule was rejected.
- **C:** This confuses consultation with a candidate's appointment entitlement.
- **D:** This states the narrow holding without immunising arbitrary action.

Examiner trap 28: Directory does not mean government may violate service rules or equality.

MCQ 29

Jatinder Kumar v State of Punjab (1984) is most relevant for the proposition that:

A. selection/recommendation does not itself compel appointment B. PSC members may be removed by a Governor C. interviews are constitutionally prohibited D. Article 323 reports are binding votes

Answer: A.

Option-by-option explanation

- **A:** This captures the advisory recommendation and government appointment role.
- **B:** This contradicts Article 317's Presidential removal rule.
- **C:** Interviews remain permissible subject to fairness and notified rules.
- **D:** Reporting accountability does not become legislative appointment power.

Examiner trap 29: Recommendation is not appointment, but government discretion remains bounded by non-arbitrariness.

MCQ 30

Ashok Kumar Yadav v State of Haryana (1985) chiefly supplies which PSC safeguard?

A. automatic appointment from a select list B. recusal against reasonable likelihood of bias and scrutiny of disproportionate interview weight C. complete judicial re-marking of candidates D. a ban on expert interviews for civil services

Answer: B.

Option-by-option explanation

- **A:** Select-list inclusion does not create automatic appointment.
- **B:** This accurately states the natural-justice and interview-design principles.
- **C:** Such re-marking would turn judicial review into appellate selection.
- **D:** The judgment regulates, rather than abolishes, a legitimate assessment method.

Examiner trap 30: Bias control is member/candidate specific; remedy and systemic effect require separate analysis.

MCQ 31

Which allocation of roles is constitutionally and administratively sound?

A. UPSC investigates vigilance allegations, CVC appoints, department recommends B. SSC frames Article 309 rules, UPSC allocates cadres, CAT conducts examinations C. department/DoPT owns rules and appointment; PSC advises/selects where assigned; CVC/CVO handles covered vigilance; tribunals/courts review legality D. SPSC determines national reservation policy and the Governor removes its members

Answer: C.

Option-by-option explanation

- **A:** This reverses investigation, advice and appointment functions.
- **B:** This assigns every institution a function it does not generally own.
- **C:** This correctly separates personnel, recruitment, vigilance and adjudicatory stages.
- **D:** This gives an SPSC policy and removal powers the Constitution does not confer.

Examiner trap 31: Map the stage before comparing institutional status.

MCQ 32

Which statement on examination-integrity law is correct?

A. The 2024 central Act automatically governs every SPSC examination. B. A paper leak is only a criminal-law issue, never a selection-law issue. C. Technology removes the need for reasoned candidate remedies. D. UPSC examinations are expressly within the central 2024 framework, while SPSC coverage requires checking applicable law and notification.

Answer: D.

Option-by-option explanation

- **A:** This universalises a central statutory schedule across State systems.
- **B:** This ignores recruitment validity, equality and natural-justice consequences.
- **C:** This treats a tool as a substitute for accountable institutional decision-making.
- **D:** This states the institution-specific legal boundary and preserves separate selection remedies.

Examiner trap 32: Do not use 'paper leak' as a slogan; identify the exam authority, applicable statute and remedy.

PYQS AND ANSWER PRACTICE

VERIFIED PYQ ROUTING AND OFFICIAL-KEY DISCIPLINE

- The repository's official-paper/routing audit for 2018-2026 contains no direct standalone Prelims or GS-II question on Articles 315-323. No year, wording, option set or official key is invented.
- The two questions below are verified adjacent Mains questions from official UPSC papers. They are labelled adjacent because they test the civil-service system rather than the PSC chapter alone.
- UPSC does not publish an official answer key for descriptive Mains papers. The model solutions are original, not official answers.

VERIFIED ADJACENT PYQ 1 - UPSC CSE MAINS 2020, GS-II

"Institutional quality is a crucial driver of economic performance." In this context suggest reforms in Civil Service for strengthening democracy.

Demand route. Connect merit recruitment and PSC integrity with wider civil-service professionalism, capacity, accountability and citizen orientation; do not make UPSC the owner of all reform.

Model solution. Institutional quality converts public authority into predictable, competent and rights-respecting administration. Recruitment through independent PSCs is the entry safeguard, but democratic performance also requires lawful political control, professional capacity and public accountability. Transparent recruitment rules, timely examinations and conflict-free interviews strengthen merit and equal opportunity. Fixed tenure in sensitive posts, recorded directions and protection against arbitrary transfers support impartial advice. Mission-oriented training, domain expertise and carefully governed lateral recruitment can improve capability, provided open criteria, reservation/equality duties and conflict controls are preserved. Digital service delivery should be paired with audit trails, privacy safeguards and accessible grievance redress. CVC/CVO vigilance, departmental discipline, legislative oversight, audit and judicial review should operate as distinct but coordinated checks. The qualification is that autonomy cannot become bureaucratic insulation: elected governments must retain policy control and officials must remain answerable for outcomes. Reform therefore means a merit-based, representative, competent and correctable civil service, not merely a larger examination system.

VERIFIED ADJACENT PYQ 2 - UPSC CSE MAINS 2025, GS-I, Q9

"The ethos of civil service in India stands for the combination of professionalism with nationalistic consciousness." Elucidate.

Demand route. Define both elements, connect constitutional recruitment to impartial capacity, and distinguish constitutional patriotism from partisan loyalty.

Model solution. Professionalism means competence, integrity, political neutrality, reasoned procedure and service to citizens. Nationalistic consciousness means commitment to India's constitutional unity, pluralism, dignity and developmental transformation, not loyalty to a government or party. PSC-based open recruitment supports professionalism by reducing patronage and standardising entry; Articles 14 and 16 require equal opportunity and lawful representativeness. After appointment, Articles 309-311, conduct rules, training and accountability institutions shape official behaviour. The two elements reinforce each other when expertise is used to deliver rights and public goods across regions and communities. They diverge when 'national interest' is invoked to excuse illegality, suppress dissent or reward partisan compliance. The sound civil servant is therefore professionally independent in advice, democratically accountable in execution and constitutionally patriotic in purpose.

ORIGINAL MAINS PRACTICE - EXACTLY SIX MODELS

ORIGINAL MAINS 1 - Explain the differentiated removal and suspension scheme for PSC members. (10 marks, 150 words)

Model solution. Article 317 centralises final removal in the President but separates grounds and interim authority. For misbehaviour, the President must refer the matter to the Supreme Court; after inquiry under the Article 145 procedure, the Court reports whether the member ought to be removed. *In re Mehar Singh Saini* (2010) shows this route operating against proved manipulation and loss of integrity. Clause (3) separately permits Presidential removal for adjudged insolvency, paid outside employment, or infirmity making the member unfit. Clause (4) deems prohibited government-contract interest to be misbehaviour. After a reference, the President may suspend a UPSC or Joint Commission member, while the Governor may suspend an SPSC member. The qualification is crucial: the Governor never finally removes an SPSC member, and Parliament's judicial-impeachment process is irrelevant. The design protects against retaliatory dismissal while preserving accountability for incapacity, conflict and grave abuse.

ORIGINAL MAINS 2 - Why is PSC advice non-binding yet constitutionally consequential? (10 marks, 150 words)

Model solution. Article 320 creates expert consultation, not a transfer of executive responsibility. PSC advice covers recruitment methods, appointment/promotion/transfer principles and suitability, discipline, legal-cost claims and injury pensions. In *State of U.P. v Manbodhan Lal Srivastava* (1957), the Supreme Court held Article 320(3)(c) directory: non-consultation alone does not invalidate action or create an individual right. *Jatinder Kumar* (1984) similarly shows that recommendation does not itself compel appointment. Yet the advice remains consequential. It supplies an independent record, strengthens consistency and exposes departmental self-interest. Article 323 requires annual reports and a memorandum explaining cases and reasons of non-acceptance before the legislature. Valid exemption regulations may narrow consultation, but arbitrariness, mala fides and breach of recruitment rules remain reviewable. Thus PSC influence is persuasive and publicly accountable rather than coercive.

ORIGINAL MAINS 3 - Compare UPSC, SPSC and Joint PSC as federal recruitment institutions. (15 marks, 250 words)

Model solution. The three bodies share the Articles 315-323 framework but differ in source, appointment and territorial design. Article 315(1) directly establishes the Union Commission and a Commission for each State. A Joint PSC is not automatic: concerned State legislatures pass resolutions and Parliament creates the common body by law under Article 315(2)-(3). The President appoints UPSC and Joint Commission members; the Governor appoints SPSC members. As nearly as may be, half of every Commission must have ten years' government-office experience. The term is six years subject to age 65 for UPSC and 62 for SPSC and Joint members. Final removal of all members belongs to the President. Misbehaviour requires a Supreme Court inquiry; after reference, the Governor alone has interim suspension power for an SPSC member. Article 320 gives examination and consultation functions, while Article 315(4) separately permits UPSC to serve a State on gubernatorial request, Presidential approval and UPSC

agreement. Article 323 makes a Joint Commission report State-wise to each served State's Governor. The common design combines uniform independence safeguards with differentiated federal ownership. Its limit is operational: appointment opacity, vacancies and staff dependence can weaken any of the three despite formal protection.

ORIGINAL MAINS 4 - Examine how reservation, lateral entry and consultation exclusions fit within the PSC system. (15 marks, 250 words)

Model solution. PSCs administer recruitment within constitutional and notified rules; they do not own reservation policy or every hiring method. Article 320(4) removes mandatory PSC consultation on the manner of giving effect to Article 16(4) and on Article 335 claims. This does not exclude reserved candidates or vacancies from PSC examinations. Government frames the roster and recruitment rules; the Commission applies them in the process assigned to it. The proviso to Article 320(3) permits the President or Governor to make exemption regulations, subject to legislative laying. At Union level, G.S.R. 203(E) of 15 March 2024 amended a Schedule entry for specified Group A and Group B posts up to level 13A filled by deputation/re-employment, short-term contract, absorption or a composite method. It is not a universal constitutional exemption called lateral entry. Each lateral or contract hire therefore requires a post-specific audit: legal source, recruitment method, equality and reservation obligations, consultation rule, transparent notice, conflict controls and competent appointment. States may have different regulations. The balanced position is neither PSC monopoly nor executive freedom; expertise-based hiring remains lawful only when constitutional equality and accountable procedure travel with it.

ORIGINAL MAINS 5 - Evaluate PSC independence and propose institution-specific reforms. (20 marks, 250 words)

Model solution. PSC independence protects equal opportunity and administrative competence from patronage. Article 317 centralises final removal in the President and requires Supreme Court inquiry for misbehaviour. Article 318 bars disadvantageous variation of a member's service conditions after appointment. Article 319 restricts post-office government employment, and Article 322 charges Union/State Commission expenditure on the appropriate Consolidated Fund. Article 323 exposes rejected advice through reports and reasons. *Mehar Singh Saini* (2010) adds that independence, impartiality and integrity are basic to the office and that grave manipulation can justify removal.

Formal safeguards do not guarantee operational autonomy. Executive-dominated appointments, delayed vacancies, dependence on government staff, opaque interviews, vendor capture, slow results and weak legislative examination of reports can erode credibility. SPSC experience varies, so one State scandal or rule must not be nationalised. Reform should publish objective appointment criteria, use a broad and recorded search process, fill vacancies on a calendar, professionalise secretariats, require conflict disclosure and recusal, audit digital and paper custody, publish reasoned result/grievance protocols and strengthen scrutiny of Article 323 memoranda. Courts should review illegality and bias without re-ranking candidates. Independence must mean lawful capacity plus transparent correction, not isolation from government, legislature or court.

ORIGINAL MAINS 6 - "Merit, representativeness and procedural fairness are complementary, not competing, goals of public recruitment." Discuss. (20 marks, 250 words)

Model solution. Merit is fitness for public responsibility, not merely the highest raw score. Representativeness ensures that historically excluded groups can access State institutions under the equality code. Procedural fairness makes both claims credible through announced rules, impartial assessment and reviewable reasons. Articles 14 and 16 provide the normative frame; Articles 315-323 create independent PSC machinery. Article 320(4) leaves reservation policy to the constitutional-governmental domain, while PSCs apply the notified roster and eligibility rules in assigned selections.

The three goals reinforce each other. Wider access enlarges the talent pool; reasonable accommodation prevents irrelevant barriers; transparent criteria make competence measurable; diverse services improve legitimacy and contextual understanding. Conflict arises when 'merit' is reduced to one exam technique, when representativeness is implemented without roster clarity, or when criteria change after applications. *Ashok Kumar Yadav* (1985) supplies bias and interview safeguards; *K. Manjusree* (2008) and *Tej Prakash Pathak* (2024) protect rule stability and non-arbitrariness. Government must still justify the post, qualifications and appointment, while courts review legality rather than choose the best candidate. Sound recruitment combines open competition, constitutional inclusion, post-relevant assessment, recusal, audit trails and timely remedies. A process is meritorious only when competence is

selected through equal and fair rules.

OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

ADVANCED 1 - APPOINTMENT DESIGN AND INSTITUTIONAL INTEGRITY

eligibility floor -> transparent search -> conflict screening -> recorded shortlist
-> constitutional appointment -> proportionate disclosure -> judicial review

Definition. Appointment design concerns how credible members enter an institution whose later tenure is strongly protected.

Answer line. Secure removal cannot fully repair a compromised entry process.

Keywords. appointment criteria; institutional integrity; diversity of expertise; recorded reasons; transparency.

PSC-specific argument.

- **Claim:** Objective and publicly known appointment criteria reduce politicisation risk.
- **Named evidence:** *In re Dr Ram Ashray Yadav* (2000), quoted in the official *Mehar Singh Saini* judgment, identifies independence, impartiality and integrity as basic determinants of PSC design.
- **Analysis:** A broader search can combine administrative experience with law, education, science, technology and labour-market knowledge.
- **Qualification:** No constitutional collegium for PSC appointments has been adopted; committee models remain reform proposals unless enacted.

Evidence. Article 316 names the appointing authority but does not prescribe a selection committee.

Prelims trap. Do not import CVC or ECI selection mechanisms into Articles 315-323.

Mains use. Evaluate entry and exit safeguards together.

Recap. Transparent selection strengthens, but does not replace, constitutional tenure.

ADVANCED 2 - INTERVIEW DESIGN, RECUSAL AND DATA

Risk	Control	Limit
member-candidate relationship	disclosure and recusal	panel continuity must remain lawful
excessive interview leverage	post-relevant weighting and structured rubric	no universal percentage for every service
opaque moderation	audit trail and published method	protect legitimate confidentiality
algorithmic screening	bias testing and human accountability	automation cannot own the legal decision

Definition. Selection design converts broad suitability into reviewable, post-relevant criteria.

Answer line. Expertise deserves deference only after conflict, criterion and record controls are satisfied.

Keywords. reasonable likelihood of bias; structured interview; moderation; algorithmic accountability.

PSC-specific argument.

- **Claim:** Recusal and proportionate viva-voce design protect actual and apparent fairness.
- **Named evidence:** *Ashok Kumar Yadav* (1985) required a related Commission member to withdraw from the concerned interview and scrutinised disproportionate oral marks.
- **Analysis:** Structured scoring reduces personal discretion while preserving assessment of communication and judgement.
- **Qualification:** Lawful weight depends on the service and governing rules; the Court did not prohibit interviews.

Evidence. Natural justice applies wherever an independent mind must fairly decide rival claims.

Prelims trap. Bias doctrine is not proof that every panel decision is invalid.

Mains use. Link recusal to institutional trust and tailored remedies.

Recap. Fairness must be visible in the design, not asserted after results.

ADVANCED 3 - CONSULTATION-MATRIX AUDIT

post -> method -> recruitment rule -> consultation clause/exemption
-> Commission/board role -> appointing authority -> report/review trail

Definition. A consultation-matrix audit tests the exact legal route for each appointment instead of relying on slogans such as 'UPSC mandatory' or 'lateral entry exempt'.

Answer line. The unit of constitutional analysis is the post and its governing rule, not the recruitment label.

Keywords. post-specific audit; Schedule entry; delegated regulation; legislative laying; State variation.

PSC-specific argument.

- **Claim:** A published consultation matrix would make exemptions visible and auditable.
- **Named evidence:** The proviso to Article 320(3) and G.S.R. 203(E) show that exclusions are text-specific and amendable.
- **Analysis:** Ministries, candidates, auditors and legislatures could identify whether consultation was required, exempted or voluntarily sought.
- **Qualification:** Publication cannot enlarge a PSC's jurisdiction beyond the Constitution, statute and rules.

Evidence. Article 323 reporting can expose patterns but does not substitute for a post-level public matrix.

Prelims trap. Exemption from consultation is not exemption from Articles 14 and 16.

Mains use. Offer the matrix as a transparency reform for lateral and specialist recruitment.

Recap. Make the legal route visible before debating the policy result.

ADVANCED 4 - SPSC CAPACITY WITHOUT UNION TAKEOVER

COMMON STANDARDS: cyber security | vendor due diligence | audit formats | training
STATE OWNERSHIP: recruitment rules | calendars | language needs | appointment | remedies
MUTUAL LEARNING: conferences | shared tools | incident protocols | peer review

Definition. Cooperative capacity-building lets State Commissions share security and administrative learning while preserving State constitutional responsibility.

Answer line. Coordination should raise the floor of integrity, not create an extra-constitutional central command.

Keywords. federal learning; minimum security standards; State variation; capacity support; accountability.

PSC-specific argument.

- **Claim:** Shared technical standards can reduce vendor and paper-leak risk across smaller Commissions.
- **Named evidence:** Article 315 uses consent-based cooperative devices rather than a general Union takeover power.
- **Analysis:** Common protocols and pooled training can improve resilience while State-specific rules continue to govern recruitment.
- **Qualification:** Any binding power, finance arrangement or data sharing requires a lawful source and privacy/security controls.

Evidence. Article 315(4) and Article 320(2) demonstrate bounded cooperation with defined triggers.

Prelims trap. Administrative coordination does not turn an SPSC into a UPSC regional office.

Mains use. Propose shared capacity and separate responsibility in the same paragraph.

Recap. Cooperate on capability; preserve constitutional ownership.

CONSOLIDATED REGISTER NOTES

Constitutional purpose and federal forms

- Articles 315-323, Part XIV, Chapter II: independent recruitment-and-consultation architecture.
- Article 315(1): UPSC for Union; SPSC for each State, subject to cooperative clauses.
- Article 315(2)-(3): concerned State legislative resolutions -> parliamentary law -> Joint PSC plus incidental arrangements.
- Article 315(4): Governor requests, President approves, UPSC agrees to serve State needs.
- Article 320(2): a different device - UPSC assists two or more States with a joint recruitment scheme for specially qualified services.
- UPSC/SPSC are constitutional; Joint PSC is constitutionally enabled and statutorily instantiated; SSC is an executive attached organisation; statutory boards depend on parent law.

Composition, tenure and acting arrangements

Point	UPSC	SPSC	Joint PSC
appoints	President	Governor	President
experience	as nearly as may be half with >=10 years government office	same	same
term	six years or 65	six years or 62	six years or 62
resignation	President	Governor	President
acting Chair	President appoints another member	Governor appoints another member	President appoints another member
final removal	President	President	President

- Strength is not fixed by the Constitution.
- Fifteenth Amendment Act, 1963 inserted Article 316(1A), acting Chair.
- Forty-first Amendment Act, 1976 raised State/Joint age from 60 to 62.
- Article 316(3): no reappointment to the same office after term expiry.

Removal and independence safeguards

misbehaviour -> President reference -> Supreme Court inquiry/report -> President removal
clause (3) -> insolvency / paid outside work / qualifying infirmity -> President
pending reference -> President suspends UPSC/Joint | Governor suspends SPSC
contract interest -> deemed misbehaviour under Article 317(4)

- Article 318: President regulates Union/Joint membership and staff; Governor regulates SPSC; member conditions cannot be varied to disadvantage after appointment.
- Article 319: office-specific post-tenure routes; never use a blanket ban.
- Article 322: UPSC expenses charged on Consolidated Fund of India; SPSC expenses on State Consolidated Fund. Joint finance requires its creating-law analysis.
- Residual limits: executive appointment, vacancies, staff dependence, weak reporting scrutiny, opaque interviews and vendor risk.

Functions, consultation and reporting

- Article 320(1): examinations for appointments to respective Union/State services.
- Article 320(3): recruitment methods; appointment/promotion/transfer principles and suitability; discipline; official-duty legal costs; injury pensions.
- Proviso: President/Governor may make consultation-exemption regulations and lay them before the appropriate legislature.
- Article 320(4): no required consultation on manner of Article 16(4) reservation or Article 335 claims. PSC still applies reservation rules in assigned recruitment.
- Article 321: Act of Parliament/State legislature may extend functions to services and named public bodies.
- Article 323: annual report + memorandum explaining rejected advice and reasons -> legislature.
- Joint Commission reports State-wise to each served State's Governor.

Recruitment and vigilance boundaries

- Government/DoPT/State personnel authority: posts, Article 309 rules, cadre, roster, appointment, training and final discipline.
- PSC: assigned examinations/selections and consultation.
- SSC: executive Union recruitment organisation, not an Article 315 body.
- Statutory boards: authority limited by parent Act/rules.
- CVC/CVO: covered vigilance scrutiny/advice; department/competent authority investigates, conducts proceedings and decides; PSC consultation enters where legally required.
- Tribunals/courts: adjudication and legality review, not routine merit ranking.
- All-India Services: UPSC examination interface plus Article 312/AIS law and government cadre/service management.
- Lateral/contract hiring: post + rules + method + equality/reservation + consultation regulation + transparent process + competent appointment.

Case code

Case	Rule
<i>State of U.P. v Manbodhan Lal Srivastava</i> (1957)	Article 320(3)(c) consultation directory; non-consultation alone does not invalidate or create individual right
<i>Jatinder Kumar v State of Punjab</i> (1984)	recommendation/advice does not itself compel appointment
<i>Ashok Kumar Yadav v State of Haryana</i> (1985)	reasonable-likelihood-of-bias recusal; interview design subject to equality review
<i>Shankarsan Dash v Union of India</i> (1991)	select-list inclusion ordinarily creates no indefeasible appointment right
<i>K. Manjusree v State of Andhra Pradesh</i> (2008)	no undisclosed selection criterion introduced after process begins
<i>In re Mehar Singh Saini</i> (2010)	Article 317 inquiry; proved manipulation/integrity failures can amount to misbehaviour warranting removal
<i>Tej Prakash Pathak v Rajasthan High Court</i> (2024 INSC 847)	recruitment criteria must follow governing rules and non-arbitrariness; mid-process change requires lawful foundation

Integrity, technology and reform

- Central Public Examinations Act/Rules 2024 expressly cover UPSC-listed central examinations; do not automatically extend them to every SPSC.
- Security chain: question creation -> custody -> centre/vendor controls -> identity -> logs -> reporting -> investigation -> reasoned remedy.
- Reform: transparent member criteria; timely vacancies; professional secretariat; conflict disclosure/recusal; structured interviews; secure vendors; published grievance timelines; stronger Article 323 scrutiny.
- Merit = post-relevant competence; representativeness = constitutionally lawful access; procedural fairness = known rules, impartial evaluation and correction.

Rapid Prelims traps

1. SPSC appointed by Governor, removed by President.
2. Joint PSC age ceiling is 62, not 65.
3. Joint PSC needs State resolutions plus parliamentary law.
4. Article 315(4) service-to-State is not Article 320(2) joint recruitment.
5. Half-members rule is 'as nearly as may be' and ten years' government office.
6. Governor may suspend an SPSC member only after Article 317 reference; cannot finally remove.
7. Article 319 has four distinct progressions.
8. Article 320 includes legal-cost and injury-pension claims.
9. Article 320(4) removes consultation on reservation policy; it does not remove reservation from recruitment.
10. Advice/recommendation is generally non-binding; rules and equality still bind government.
11. UPSC is not DoPT, SSC, CVC, CAT or a statutory recruitment board.
12. Courts review legality and bias; they do not normally re-rank candidates.

Mains answer spine

DEFINE constitutional purpose
-> IDENTIFY exact Article, body and actor
-> CLAIM one institutional effect
-> CITE named Article / regulation / case / report
-> ANALYSE merit, representation, fairness or federal accountability
-> QUALIFY advisory nature, exemption, State variation or review boundary
-> REFORM the precise deficit
-> VERDICT: independent + capable + transparent + correctable recruitment

Final line. Public Service Commissions protect the legitimacy of public entry not by replacing government, but by making recruitment more expert, equal, visible and reviewable.